

PROSECUTORS GUIDE

Sex Offender Prohibition Order (SOPO)

Application made under S. 66D Sex Offender Registration Act 2004.

SOPO application must include:

- Affidavit in support of the order completed by applicant (SOR intranet has sample affidavits)
- The application which outlines conditions sought [SECT 66Q](#)
- **Must ask for monitoring conditions including search and entry powers under [SECT 66U](#)**
- Duration of SOPO requested and justifications of same. Must not exceed 5 years or until offender completes their period of reporting [SECT 66P](#)
- Prior convictions

Independent SOPO application:

Application to be made for final SOPO

SOPO application accompanying criminal charges:

Defence may seek an interim SOPO to await final determination of application in line with criminal prosecution. **Ensure the SOPO application runs parallel with criminal charges**

Interim SOPO under S.66E SORA.

- (1) The court may make an interim prohibition order on an application under section 66D if the court is satisfied, **on the balance of probabilities**, that—
- (a) the registrable offender poses a risk to the sexual safety of one or more persons or of children or the community generally; and
 - (b) it is necessary to make an interim prohibition order **to reduce that risk pending a final decision** about the application.
- (2) If the registrable offender is an adult, the court may make an interim prohibition order—
- (a) whether or not the registrable offender has been served with a copy of the application for the prohibition order; and
 - (b) whether or not the registrable offender is present when the interim prohibition order is made.

Call Informant to give EIC or seek to rely on affidavit by informant attached to application.

Interim SOPO Granted - Adjournment of final order SOPO under S.66G SORA.

Interim order explanation

If the court makes an interim prohibition order, the court must ensure the application under section 66D is listed for hearing about the final prohibition order as **soon as practicable**.

Ensure next hearing date is included in court extract

Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording. Extract must include:

Duration of SOPO, Conditions granted, monitoring conditions & confirmation on whether offender was served notice

Interim SOPO NOT Granted

New facts and circumstance will be required prior to submitted new application.

Seek next available hearing as soon as available due to the risk to the community.

Final Sex Offender Prohibition Order granted.

Final order explanation

Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording. Extract must include:

Duration of SOPO, Conditions granted, monitoring conditions & confirmation on whether offender was served notice

SOPO Child Respondent

Refer to sections 66K & 66L for further information

Sex Offender Registry intranet page.

Included on this page is FAQ, Prosecutions cover sheet, example affidavits and condition wording.

<u>Sex Offender Prohibition Order (SOPO) Checklist</u>

Application	☐ Affidavit ☐ Conditions pursuant to section 66Q ☐ Monitoring conditions including search and entry powers under section 66U.
Interim SOPO Granted	☐ Next hearing date set: application for final order must be listed for hearing as soon as practicable ☐ Court extract must include • duration of order • conditions granted • monitoring conditions • whether offender was served notice ☐ Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording.
SOPO Not Granted	☐ Court extract must include • order not granted ☐ Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording.
Final SOPO Granted	☐ Court extract must include • duration of order • conditions granted • monitoring conditions • whether offender was served notice ☐ Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording.
Varied SOPO	☐ Court extract must include • duration of order • conditions granted • monitoring conditions • whether offender was served notice ☐ Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording.
Revocation	☐ Court extract must include • order revoked ☐ Prosecutor to provide informant a copy of the court extract for informant to forward to SOR for recording.